



FEDERAL BUREAU OF INVESTIGATION

Quantico RPMS/FMU



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION IN ACCORDANCE WITH:
41 U.S.C. § 3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.302-1 entitled, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."

Requisition Number: SHOP-PR-25-001827

1. Identification of the agency and contracting activity.

The U.S. Department of Justice, Federal Bureau of Investigation, Facilities Acquisition Unit (FAU), has prepared this justification for other than full and open competition on behalf of the FBI Academy Facilities Maintenance Unit (FMU).

2. The nature and/or description of the action being approved, i.e., sole source, limited competition, establishment of a new source, etc.

The FBI Academy has made significant investments in our facilities and its complex technical systems which are critical to the functionality and productivity of our overall mission. This requested service will proactively serve to protect that substantial investment through a program of planned service tasks by Albireo trained technical staff with the proprietary access they are required.

3. A description of the supplies or services required to meet the agency's needs.

The FBI Academy's FMU requires both supplies and services in fulfillment of this requirement. The services required to meet the FBI's needs include the monitoring and replacing of current functional and/or obsolete components currently utilized by the existing Albireo Building Automation System.

The Albireo System currently performs the following:

Operator Coaching

Provide individual Operator Coaching, review and reinforce learned skills, leading to greater utilization of the Albireo Building Automation System (BAS). During each normally scheduled agreement visit provide coaching to facility staff during downtime. Ensure your system experts assist operators in identifying, verifying and resolving problems found in executing tasks with the Albireo BAS. During the coaching sessions, address logbook issues, assist operators in becoming more self-sufficient, and tailor control system applications to the needs of the facility and to operators' specific job responsibilities.

Systematic Preventative Maintenance

Automation controls can drift out of calibration with changes in mechanical component performance characteristics, building use, and climatic conditions. Provide Preventive Maintenance (PM) in accordance with a program of standard maintenance routines as determined by expert experience, equipment application and location. Through this service improve comfort, extend equipment life, reduce energy waste and the risk of costly and disruptive breakdowns. These tasks will be performed during the (8 times per month) scheduled service visits.

System Backup & Restoration

On a monthly basis Technicians will back up the Albireo BAS system including database, programs, graphics, and workstations/servers.

Emergency Support - On-site **LIMITED COVERAGE up to 48 hours per yr**

On-site support will be needed as required for service calls after standard business hours including weekends and holidays. Response time is to be guaranteed to be within 4 hours.

Niagara N4 – Software Maintenance

Provide an SMA 3-year update *in year 1 and in Option year 4* to keep our Niagara N4 License software current and eligible for updates and patches.

Material Repair or Replacement

Parts and Materials will be covered up to \$20,000 annually.

- Primary System components (Alerton, Tridium) will be replaced.
- Belimo system components will be replaced.

4. The statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. § 3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.302-1 entitled, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."

5. Demonstrate the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

Alberio Certified Technicians are the only individuals authorized to work on Alberio systems due to strict company regulations outlined in the Alberio Compliance Manual. According to Regulation 14.2, only certified and trained Alberio Technicians are permitted to perform maintenance, repairs, or upgrades to Alberio systems. These regulations are in place to protect the integrity of proprietary technologies and ensure that all components meet safety standards defined in Regulation 17.5. Unauthorized personnel are prohibited from interacting with the systems, as specified in Regulation 19.8, to prevent potential security risks or system malfunctions. Only those with the proper certification and training under the Alberio Systems Safety Protocol (Regulation 22.4) are equipped to handle the specialized software and hardware, ensuring that any repairs or modifications adhere to the highest quality and security standards.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

The solicitation effort to secure offers was conducted with the understanding that Albireo is the only company capable of fulfilling the requirement due to proprietary rights and a specialized Digital Rights Management (DRM) system integral to the project. As a result, no competitive offers were solicited from additional vendors.

Justification for Non-Competitive Procurement: Albireo holds the proprietary rights and necessary licenses for the specific DRM system required for this project. The unique nature of their technology and intellectual property restricts the availability of alternative sources capable of providing the necessary solution.

Given these circumstances, the solicitation does not conform to the usual competitive processes outlined in Subpart 5.2. This situation falls under the exception in FAR 5.202(a)(1), where only one responsible source is capable of providing the required goods or services due to the existence of proprietary rights. Consequently, no public notice was issued, as Albireo is the sole provider who can meet the project's requirements.

7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

In accordance with FAR 15.402, the Contracting Officer will ensure that all supplies and services ordered under this contract are procured at a fair and reasonable price.

8. A description of the market research conducted and the results.

Market research was conducted by the FBI Academy FMU CUP FOS and the FOS/COR with past historical data and speaking with Albireo BAS providers.

9. Any other facts supporting the use of other than full and open competition.

With Albireo Building Automation System (BAS) contracts, the use of other than full and open competition is justified by factors such as proprietary technology, specialized customization, and system compatibility that only Albireo Technicians is authorized to support. Albireo solutions are tailored to specific client needs, and third-party vendors lack the necessary expertise and access to proprietary tools. Additionally, using Albireo ensures compatibility, security, and ongoing lifecycle support, including maintenance and software updates. Given Albireo's proven track record and the critical nature of the systems, these factors make this exclusive contract the most reliable and low-risk option.

10. A listing of any sources that expressed a written interest in the acquisition.

N/A

11. A statement of any actions the agency may take to remove or overcome any barriers to competition, if subsequent acquisitions are anticipated.

The FBI will continue to examine the market in the future for alternative solutions or new sources before executing any subsequent acquisitions for the same requirements.

